

Karuna Nidhi Tiwari v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 21 January 2015 · Writ - C No. 1988 of 2015 · **Writ disposed; petitioner relegated to higher authority under 4.6(f).**

HEADNOTE

A grievance as to the total money demanded for providing an electricity connection is to be examined by the authority one step higher than the officer who made the impugned order, under clause 4.6(f) of the Electricity Supply Code, 2005. The writ was disposed of with liberty to approach that authority, which is to decide the representation in accordance with law by a reasoned speaking order.

FACTUAL SUMMARY

Karuna Nidhi Tiwari approached the Allahabad High Court in a writ petition against U.P. Power Corporation Ltd., through its Managing Director, and three others. His grievance was the total sum demanded as a condition of providing an electricity connection to his installation. The petitioner was represented by Mahboob Ahmad; the standing counsel appeared for the State respondents. The Court heard both sides on that limited complaint and did not inquire into how the demand had been computed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(f)

connection charges — next higher authority

HOLDING

Issues as to the total money demanded for providing an electricity connection can be examined by the authority one step higher than the authority who made the impugned order, under clause 4.6(f) of the Electricity Supply Code, 2005. The petitioner was permitted to approach that higher authority within two weeks; on such representation the higher authority shall consider and decide the same in accordance with law by a reasoned speaking order, preferably within eight weeks.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE QUANTUM OF MONEY DEMANDED FOR THE CONNECTION WAS LAWFUL

Left to the next higher authority under clause 4.6(f). ¶ 1